RECALLING Article 28(b) of the Convention on the International Maritime Organization con cerning the functions of the Committee, RECALLING ALSO that the Assembly, when adopting resolution A.649(16) on the Code for the Construction and Equipment of Mobile Offshore D rilling Units, 1989 (1989 MODU Code), authorized the Committee to amend the Code, when a ppropriate, taking into consideration the design and safety features after due consultat ion with appropriate organizations, RECOGNIZING the significant contribution which is ma de by the 1989 MODU Code to the promotion of the safety of MODUs and property at sea and the lives of persons on board, RECOGNIZING ALSO the need for introduction into this Code of provisions for survey and certification which are harmonized with corresponding - Cod e to the promotion of the safety of MODUs and property at sea and the lives of persons o n board, RECOGNIZING ALSO the need for introduction into this Code of provisions for sur vey and certification which are harmonized with corresponding provisions in other intern ational instruments, RECOGNIZING FURTHER the need for introduction into this Code of ref erence to Guidelines for vessels with dynamic positioning systems, RECOGNIZING FURTHER t he need for amendments to provisions for helicopter facilities, HAVING CONSIDERED the re commendations made by the Sub-Committee on Ship Design and Equipment, at its thirty-seve nth session, on introduction of the harmonized system of survey and certification (HSSC) into the 1989 MODU Code, on guidelines for vessels with dynamic positioning systems and on helicopter facilities, 1.

ADOPTS amendments to the 1989 MODU code, set out in Annexes 1, 2 and 3 to the present re solution; 2.

DECIDES that: .

1 amendments introducing the HSSC should become effective on the same date as the 1988 S OLAS and Load Line Protocols relating to the HSSC; and .

2 amendments for guidelines for vessels with dynamic positioning - 2.

DECIDES that: .

1 amendments introducing the HSSC should become effective on the same date as the 1988 S OLAS and Load Line Protocols relating to the HSSC; and .

2 amendments for guidelines for vessels with dynamic positioning systems and helicopter facilities should become effective on 1 July 1994; W/1649n/EWP RESOLUTION MSC.38(63) (ad opted on 19 May 1994) ADOPTION OF AMENDMENTS TO THE CODE FOR THE CONSTRUCTION AND EQUIPM ENT OF MOBILE OFFSHORE DRILLING UNITS, 1989 MSC 63/23/Add.l ANNEX 20 Page 2 3.

AGREES that Governments that have informed IMO that they are introducing the HSSC under the terms of resolution A.7l8(17) before the entry into force of the 1988 SOLAS and Load Line Protocols should be permitted to also implement the HSSC in respect of the 1989 MOD U Code provided that the mobile offshore drilling unit safety certificat